

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anthony Cennamo	Team: Squad #05	CCRB Case #: 201603836	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 03/17/2016 8:00 PM	Location of Incident: Outside of § 87(2)(b) in Brooklyn.	18 Mo. SOL 9/17/2017	Precinct: 75		
Date/Time CV Reported Fri, 03/25/2016 1:23 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 03/25/2016 1:23 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Krystal Murray	15129	950928	075 PCT
2. POM Ramil Casimir	11100	950170	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mahmudul Bhuiyan	19636	953682	075 PCT
2. POM Samuel Hui	28856	953978	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Krystal Murray	Abuse: Police Officer Krystal Murray stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Ramil Casimir	Abuse: Police Officer Ramil Casimir stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Ramil Casimir	Abuse: Police Officer Ramil Casimir frisked § 87(2)(b)	C . Unsubstantiated
D . POM Ramil Casimir	Abuse: Police Officer Ramil Casimir searched the vehicle in which § 87(2)(b) was an occupant.	D . Unsubstantiated
E . POF Krystal Murray	Abuse: Police Officer Krystal Murray searched the vehicle in which § 87(2)(b) was an occupant.	E . Unsubstantiated

Case Summary

On March 25, 2016, § 87(2)(b) filed this complaint in person during her interview at McDonalds on Linden Boulevard and Drew Street in Brooklyn. § 87(2)(g)

On March 17, 2016, at approximately 8:00 p.m., § 87(2)(b) observed safety lights from a marked police vehicle outside of her home at § 87(2)(b) in Brooklyn. § 87(2)(b) walked downstairs from the second floor and exited her home with her son, § 87(2)(b) as they stood at the bottom of the front porch steps approximately 10 feet away from the incident. § 87(2)(b) § 87(2)(b)'s eldest son § 87(2)(b) was stopped by a marked police vehicle, occupied by PO Krystal Murray and PO Ramil Casimir of the 75th Precinct, with his girlfriend § 87(2)(b) last name unknown, and her unnamed § 87(2)(b) son (**Allegations A and B**). § 87(2)(b) did not recall how many officers were present and estimated there were approximately four or five officers on the scene. § 87(2)(b) stepped out of his vehicle and PO Casimir proceeded to pat down his outer garments (**Allegation C**). While the frisk took place, § 87(2)(b) took her son out of the car and walked inside § 87(2)(b) with § 87(2)(b) § 87(2)(b) could not describe the officers on the scene as the area was poorly lit. A female officer, determined by the investigation to be PO Krystal Murray, and PO Casimir, looked through § 87(2)(b)'s car with their flashlights, opened his two front doors and searched the glove compartment, underneath the front two seats, and looked underneath the two back seats (**Allegations D and E**). The search took approximately 20 minutes and the officers then left the scene. § 87(2)(b) told § 87(2)(b) that the officers were looking for guns, but did not find any. There was no summons issued or arrests made as a result of this incident.

There is no video footage in regards to this incident.

Mediation, Civil and Criminal Histories

§ 87(2)(b) was offered mediation but declined § 87(2)(b). On June 16, 2016, a notice of claim request was submitted and will be added to the case file upon its receipt. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Contact attempts were made to § 87(2)(b) to obtain a verified statement, but he was deemed uncooperative. § 87(2)(b) stated that § 87(2)(b) did not wish to cooperate with the investigation when she was contacted in regards. On June 16, 2016, a notice of claim request was submitted and will be added to the case file upon receipt. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed seven prior complaints with the CCRB, § 87(2)(g)
- PO Murray has been a member of the NYPD for four years and has been the subject of two prior complaints involving two allegations, none of which were substantiated. § 87(2)(b)
- PO Casimir has been a member of the NYPD for four years and has been the subject of three prior complaints involving seven allegations, none of which were substantiated. § 87(2)(g)

According to § 87(2)(b) § 87(2)(b) stepped out of his vehicle upon request of one of the officers. § 87(2)(b) could not hear any conversation and could not see the officers from where she stood, because it was dark outside and the area was poorly lit. PO Casimir walked § 87(2)(b) over to the back end of the vehicle, near the trunk, and proceeded to place his hands on the outside of § 87(2)(b)'s pants pockets. § 87(2)(b) did not observe any more of that interaction because § 87(2)(b) § 87(2)(b)'s girlfriend, came to her and § 87(2)(b) with her § 87(2)(b) son, who was scared. § 87(2)(b) instructed § 87(2)(b) and § 87(2)(b) to take the child inside the home and remain there while she waited outside for § 87(2)(b) § 87(2)(b) did not see any other officer interact with § 87(2)(b) after he was patted down. § 87(2)(b) § 87(2)(b) recognized one of the officers from a previous incident, and did not see him or the officer he arrived with physically touch § 87(2)(b) at any point.

According to PO Casimir, he did not recall the interaction that he had with § 87(2)(b) after the vehicle was stopped. PO Casimir recalled that as § 87(2)(b) stepped out of the vehicle, four other officers arrived on the scene in a mix of uniform and plainclothes. PO Casimir and PO Murray both recalled that PO Murray did not interact with § 87(2)(b) at any point and spoke with § 87(2)(b) on her front steps. PO Murray recalled that she saw PO Casimir step to the back of the car with § 87(2)(b) § 87(2)(g) § 87(2)(b) but did not observe any frisk conducted by PO Casimir. PO Casimir did not recall if he frisked § 87(2)(b) or not, and denied that another officer ever frisked § 87(2)(b). PO Mahmudul Bhuiyan, an officer that interacted with § 87(2)(b) one day prior, responded to the scene with his partner, PO Samuel Hui. Both PO Bhuiyan and PO Hui did not see any officer frisk § 87(2)(b) at any point, and only arrived as the officers were preparing to get into their vehicles and leave the scene. PO Bhuiyan spoke with § 87(2)(b) and denied that § 87(2)(b) ever complained that her son § 87(2)(b) was frisked. PO Hui did not recall what § 87(2)(b) said when he interacted with her. Every officer stated that no guns were recovered as a result of this incident. PO Murray stated that she did not have any reason to believe § 87(2)(b) or his girlfriend § 87(2)(b) were in possession of a firearm after they stopped the vehicle and spoke with them. PO Murray was told by § 87(2)(b) and § 87(2)(b) that an unknown female was calling 911 and making false allegations against their family, and has done so a day prior. PO Bhuiyan was present and recalled that § 87(2)(b) complained that an unknown female caller, potentially an ex-girlfriend of either § 87(2)(b) or § 87(2)(b) made false allegations against them as a form of vengeance against her sons.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D – Abuse of Authority: Police Officer Ramil Casimir searched the vehicle in which § 87(2)(b) was an occupant.

Allegation E – Abuse of Authority: Police Officer Krystal Murray searched the vehicle in which § 87(2)(b) was an occupant.

According to § 87(2)(b) after § 87(2)(b) was frisked toward the back end of the vehicle, § 87(2)(b) observed a male and female officer search the vehicle. PO Murray allegedly searched the front passenger side and PO Casimir searched underneath the driver's seat. § 87(2)(b) observed PO Murray and PO Casimir open all four car doors and look inside with their flashlights, but was told later by § 87(2)(b) that PO Murray went into the glove compartment and PO Casimir checked the center console between the driver seat and front passenger seat. § 87(2)(b) did not see any officer open the trunk and § 87(2)(b) did not mention that any officer wanted to open the trunk at any point. § 87(2)(b) told § 87(2)(b) that the officers searched his car for guns. § 87(2)(b) recalled that the officers did not find any guns, and left the scene after their search was conducted. The search lasted approximately 20 minutes and the officers did not interact with § 87(2)(b) or § 87(2)(b) after their search was completed.

According to PO Murray, she did not search the vehicle and did not observe any other officer do so. PO Murray spoke with § 87(2)(b) throughout the entire incident because she was upset and cried through the duration of the incident. PO Murray was told by § 87(2)(b) repeatedly that the allegations made in the 911 call against § 87(2)(b) were not true, and PO Murray spent the entire incident explaining to § 87(2)(b) why the officers were there and attempted to keep her calm. PO Casimir did not recall if he looked into the vehicle with a flashlight, but denied that he opened any door of the vehicle and searched the inside. PO Casimir did not see any other officer search the vehicle or look inside with their flashlights. PO Casimir was consistent with PO Murray in regards to the fact that PO Murray only spoke with § 87(2)(b) on the front steps throughout the incident, which was approximately 30 feet away from the incident location. PO Bhuiyan did not recall seeing any officer search the vehicle at the scene and claimed he arrived at the scene of the incident after the officers who initially responded finished with § 87(2)(b). PO Bhuiyan spoke with § 87(2)(b) from his vehicle and she did not complain that the vehicle had been searched at any point. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

PO Murray did not interact with § 87(2)(b) at any point he was outside of the vehicle when the search would have taken place, and did not see any other officer search the vehicle. PO Murray believed § 87(2)(b) that false allegations were made against § 87(2)(b) and did not believe § 87(2)(b) possessed any firearms, and did not see any firearms when they initially stopped the vehicle. PO Casimir corroborated this and also did not see any firearms when they first stopped the vehicle, and only observed the vehicle double parked and stationary with nothing else out of the ordinary. PO Bhuiyan did not recall a majority of the incident, but did not hear § 87(2)(b) complain that the vehicle was searched when he spoke with her. PO Casimir claimed that the officers were present at the incident location for 20 minutes, but could not give any details about what the officer did at the incident location for 20 minutes, except that PO Murray spoke with § 87(2)(b) for approximately that amount of time. § 87(2)(b) also mentioned that it was poorly lit outside and she could not see the officers from where she stood, but could see their flashlights pointing inside of the vehicle. § 87(2)(g)

_____. Therefore, it is recommended that **Allegations D and E** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date